

4	Ghadiri v. Adam 2025-01481407 Leave to Amend DENIED.	Plaintiff, Adam Ghadiri's Motion for Leave to Amend is DENIED. Defendant's requests for judicial notice are granted as records of this Court. (Evid. Code, § 452(d).) Defendant's counsel is reminded Code Civ. Proc., § 1010.6(c)(1) [requires express consent for electronic service of unrepresented parties]. The Court has already determined the causes of action are beyond the statute of limitations. Plaintiff's proposed amendment contains the same fatal defect within the original complaint. Exhibit B to the proposed amendment is an email from June 5, 2021 acknowledging that Plaintiff was aware of the alleged facts giving rise to the fraud claim. Thus, the delayed discovery rule could only delay accrual of the statute of limitations until June 5, 2021. Plaintiff's 3rd and 4th causes of action for violation of Civil Code § 1102 and 2079 are similarly barred by the statute of limitations. Therefore, Plaintiff is denied leave to amend. Plaintiff shall give notice.
5	Hull v. Knickerbocker Prop. Inc., XL 2025-01493736 Strike Portions of First Amended Complaint	The motion of Defendants Sentinel Real Estate Corporation and Knickerbocker Properties, Inc. XL to strike portions of the first amended complaint of Plaintiffs Michael Hull and Paige Meskimen is GRANTED with 30 days' leave to amend. If plaintiffs choose to amend, they should specify the causes of action for which punitive damages are sought as well as the specific conduct supporting that request. According to <i>Lackner v. North</i> (2006) 135 Cal.App.4th 1188, 1210, subdivision (a) of Civil Code section 3294, authorizes an award of punitive damages in noncontract actions where it is proven by clear and convincing evidence that the defendant has been guilty of oppression or malice. Oppression means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. Ibid. As amended in 1987, malice based upon a conscious disregard of the plaintiff's rights requires proof that the defendant's conduct is "despicable" and "willful." <i>Lackner v. North</i>, supra, 135 Cal.App.4th at p. 1211. The 1987 amendment also increased the burden of proof so that malice or oppression must be established by clear and convincing evidence. Ibid. Plaintiffs have not clearly identified the conduct that purportedly justifies an award of punitive damages. Nor have they identified the cause or causes of action for which such